

Criminal Law I | Transitioning from IPC to BNS

CHAPTER I INTRODUCTION

IPC Preamble and Sections 1-5 | BNS Section 1

This rewritten introduction reproduces the supplied IPC preamble and Sections 1-5, including all three extra-territorial limbs, both explanation clauses, the Uganda illustration and the saving for service, special and local laws. Section-specific notes compare these rules with BNS Section 1 and explain how to identify the applicable code, the location of the alleged conduct and its connection with India.

Study edition: 8 October 2026. Course position 1. Preamble, five IPC provisions, two explanation clauses, one illustration and eight self-check questions. Includes the supplied IPC provisions in full, with separate legal-status notes and study explanations.

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Objectives and transition

- Read the supplied preamble and each of IPC Sections 1-5.
- Distinguish the enactment date shown in the extract from commencement and later amendments.
- Map the title, territorial, overseas-trial, extra-territorial and saving provisions to BNS Section 1.
- Apply all three extra-territorial connections separately.
- Explain the offence and computer-resource explanations and the Uganda illustration.
- Preserve the role of service, special and local laws.
- Select the substantive code by the conduct date and relevant savings rather than the complaint date alone.

The supplied heading records 6 October 1860, the historical enactment date. It is not the BNS commencement date. The extract incorporates later amendments; editorial footnote numbers, amendment brackets and deletion stars have been removed for readability while retaining its supplied substantive wording. The relevant BNS introductory provisions commenced on 1 July 2024. For a live matter, identify the date of each alleged act and apply BNS 358 repeal and savings together with Article 20(1); a later complaint does not automatically convert pre-commencement conduct into a BNS offence. Keep procedural questions under the relevant procedure law separate from substantive jurisdiction.

IPC-to-BNS comparison

[6th October, 1860.]

Preamble.-WHEREAS it is expedient to provide a general Penal Code for India; It is enacted as follows:-

The IPC introductory provisions are substantially consolidated in BNS Section 1: IPC 1's title corresponds to BNS 1(1); IPC 2 to 1(3); IPC 3 to 1(4); IPC 4 to 1(5); IPC 5 to 1(6). BNS 1(2) separately concerns commencement. This is a subject comparison, not a claim that every word or explanation is reproduced identically.

IPC 1. Title and extent of operation of the Code

Supplied historical IPC provision; BNS correspondence and explanation appear separately below.

Supplied IPC text

This Act shall be called the Indian Penal Code, and shall extend to the whole of India.

BNS reference: 1(1) (short title); read commencement separately under 1(2)

Study explanation

This names the historical Code and states its territorial extent in the supplied amended text. Do not read the modern amended wording as an unchanged transcription of the law enacted in 1860. BNS 1(1) supplies the new short title; commencement is separately governed by 1(2).

IPC 2. Punishment of offences committed within India

Supplied historical IPC provision; BNS correspondence and explanation appear separately below.

Supplied IPC text

Every person shall be liable to punishment under this Code and not otherwise for every act or omission contrary to the provisions thereof, of which he shall be guilty within India.

BNS reference: 1(3)

Study explanation

The territorial rule refers to every person, rather than Indian citizens alone, and covers an act or omission contrary to the Code. Presence or nationality is not itself proof of the ingredients of an offence. Identify the alleged conduct, its location and the substantive provision violated; consider any independently applicable immunity or exception separately.

IPC 3. Punishment of offences committed beyond, but which by law may be tried within, India

Supplied historical IPC provision; BNS correspondence and explanation appear separately below.

Supplied IPC text

Any person liable, by any Indian law, to be tried for an offence committed beyond India shall be dealt with according to the provisions of this Code for any act committed beyond India in the same manner as if such act had been committed within India.

BNS reference: 1(4)

Study explanation

This deals with a person already made liable by Indian law to trial for an offence outside India. Identify the legal basis permitting the Indian trial; Section 3 is not a blanket claim of jurisdiction over every foreign act by every foreign person. Once its conditions are met, the Code applies in the stated manner.

IPC 4. Extension of Code to extra-territorial offences

Supplied historical IPC provision; BNS correspondence and explanation appear separately below.

Supplied IPC text

The provisions of this Code apply also to any offence committed by-

- (1) any citizen of India in any place without and beyond India;
- (2) any person on any ship or aircraft registered in India wherever it may be;
- (3) any person in any place without and beyond India committing offence targeting a computer resource located in India.

Explanation.-In this section-

- (a) the word "offence" includes every act committed outside India which, if committed in India, would be punishable under this Code;
- (b) the expression "computer resource" shall have the meaning assigned to it in clause (k) of sub-section (1) of section 2 of the Information Technology Act, 2000 (21 of 2000).

Illustration

A, who is a citizen of India, commits a murder in Uganda. He can be tried and convicted of murder in any place in India in which he may be found.

BNS reference: 1(5)(a)-(c) and explanation

Study explanation

Apply the three connections with India separately: citizenship; an Indian-registered ship or aircraft; or targeting a computer resource located in India from abroad. Citizenship is not a condition of the ship/aircraft or computer-resource limbs, which refer to any person. The offence explanation asks whether the foreign act would be punishable if committed in India. The Uganda illustration supplies a citizenship connection, not a universal rule for every person committing an offence abroad. Procedural requirements for an overseas offence remain a separate inquiry.

IPC 5. Certain laws not to be affected by this Act

Supplied historical IPC provision; BNS correspondence and explanation appear separately below.

Supplied IPC text

Nothing in this Act shall affect the provisions of any Act for punishing mutiny and desertion of officers, soldiers, sailors or airmen in the service of the Government of India or the provisions of any special or local law.

BNS reference: 1(6)

Study explanation

The general Penal Code preserves the stated service-law provisions and special or local laws. Identify the applicable special enactment and its own conditions. This is a saving clause, not immunity for all service personnel and not a declaration that only one statute can ever be relevant to a set of facts.

Territorial and extra-territorial application

Within India: begin with the location of the alleged act or omission and its offence ingredients. The phrase every person is broader than citizenship. Do not infer guilt merely from being present within India.

Outside India: identify the statutory connection rather than assuming jurisdiction. IPC 3 concerns acts for which another Indian law makes a person liable to an Indian trial; IPC 4 expressly adds citizenship, Indian ship/aircraft registration and the location of a targeted computer resource.

Citizenship example: the supplied illustration concerns an Indian citizen committing murder in Uganda. Its teaching point is the citizenship limb. The BNS illustration generalises the foreign location rather than naming Uganda. It does not eliminate separate procedural conditions for inquiry or trial.

Ship or aircraft example: for conduct aboard a ship or aircraft abroad, identify whether it is registered in India. A passenger's Indian citizenship is not a stated requirement of this limb; the clause says any person.

Computer-resource example: where conduct abroad targets a resource in India, record evidence of the targeting and the resource's location. Merely using the internet or having an Indian victim does not substitute for those stated elements. The substantive offence must still be established.

Definition reference: the supplied IPC 4 explanation incorporates IT Act 2(1)(k), which defines computer resource to include a computer, computer system, computer network, data, computer database or software. Do not narrow it to physical hardware alone. BNS 1 retains the offence explanation; its explanation does not separately reproduce IPC 4's IT Act definition cross-reference. Consult the relevant definitions when analysing a technical fact pattern.

Saving clause: IPC 5 / BNS 1(6) preserves the named mutiny/desertion enactments and special or local laws. Evaluate that legislation on its own terms; the general saving does not automatically establish an offence or confer a defence.

Revision and exam method

- 6 October 1860 in the supplied heading is the IPC enactment date, not the commencement of the BNS.
- The supplied amended IPC Section 1 says the whole of India.
- IPC 2 / BNS 1(3) covers every person and prohibited acts or omissions within India.
- IPC 3 / BNS 1(4) requires a legal basis for trying the overseas offence in India.
- IPC 4 / BNS 1(5) covers Indian citizens abroad, any person on Indian-registered ships/aircraft, and overseas targeting of an Indian computer resource.
- The supplied offence explanation tests whether the foreign act would be punishable if committed within India.
- IPC 4 incorporates IT Act 2(1)(k) for computer resource; do not invent an identical cross-reference in BNS 1.
- The Uganda illustration depends on Indian citizenship.
- IPC 5 / BNS 1(6) preserves service, special and local laws.
- Use the conduct date, BNS 358 and Article 20(1) to assess the IPC-to-BNS transition.

State the conduct date and applicable substantive code. Identify whether the alleged act or omission occurred within India or abroad. For conduct abroad, specify the legal basis for trial and the precise citizenship, registration or computer-resource connection. Apply the offence explanation and any relevant definitions. Discuss special or local law separately. Do not conflate substantive application, procedural permission, trial venue or proof of guilt.

Practice questions and model answers

Self-check study exercises; not a timed or graded assessment.

1. What does [6th October, 1860.] represent in the supplied extract?

Model answer: The historical IPC enactment date shown in the heading. It must be distinguished from commencement, later amendments and the BNS commencement on 1 July 2024.

2. Give the introductory IPC-to-BNS mapping.

Model answer: IPC 1's title corresponds to BNS 1(1); IPC 2 to 1(3); IPC 3 to 1(4); IPC 4 to 1(5); and IPC 5 to 1(6). BNS 1(2) separately addresses commencement.

3. Does the territorial rule apply only to Indian citizens?

Model answer: No. IPC 2 / BNS 1(3) uses every person. Establish the act or omission, location and offence ingredients, while considering independently applicable exceptions or immunity.

4. Does IPC 3 automatically cover every offence committed anywhere by anyone?

Model answer: No. Identify the Indian law making the person liable to be tried in India for that overseas offence. The provision cannot be treated as unrestricted worldwide jurisdiction.

5. Explain the Uganda illustration.

Model answer: A is an Indian citizen who commits murder in Uganda; the supplied illustration permits Indian trial and conviction where A may be found. Citizenship supplies the extra-territorial connection. Procedural requirements remain separate.

6. Must a person aboard an Indian-registered aircraft abroad also be an Indian citizen for this limb?

Model answer: No. The ship/aircraft limb says any person. Establish Indian registration and the alleged conduct rather than inserting a citizenship condition.

7. A person abroad targets software located in India. What should be checked?

Model answer: The substantive offence, evidence of targeting, and resource location. The supplied IPC explanation incorporates IT Act 2(1)(k), which includes software as a computer resource.

8. Does the general Code abolish special or local penal laws, and does a later complaint decide the applicable code?

Model answer: No to both. IPC 5 / BNS 1(6) preserves the stated laws. For transition, analyse the conduct date with repeal and savings and constitutional protection; complaint timing alone is insufficient.

Official sources

Historical IPC - preamble and Chapter I, Sections 1-5

[Open official source](#)

BNS 2023 - Section 1 and Section 358 (India Code)

[Open official source](#)

Information Technology Act 2000 - Section 2(1)(k)

[Open official source](#)

BNS commencement notification S.O. 850(E), 23 February 2024

[Open official source](#)

Read the full applicable statutory text for a live matter. The supplied historical enactment and amended extract must be distinguished from BNS commencement. Substantive jurisdiction and procedural trial requirements are separate questions. The examples are teaching illustrations, not reported judgments.